

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
MALEEK SMITH,*Plaintiff,*

-against-

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT, and
DETECTIVE JOHNPAUL VINCULADO,*Defendant(s).*
-----X

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on Plaintiff's attorney(s) within twenty (20) days after the service of this Summons, exclusive of the day of service [or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York]; and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
June 24, 2020

Yours, etc.,

ROTH & KHALIFE, LLP,

By: RONALD H. ROTH, ESQ.,
Attorney for Plaintiff(s),
233 Broadway, Suite 2220
New York, New York 10279
Telephone: 212-608-3015
Facsimile: 212-608-2177

¹ The subject incident giving rise to this lawsuit occurred within the County of Queens, State of New York.

To:

CITY OF NEW YORK

Defendant

c/o New York City Corporation Counsel's Office
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

Defendant

c/o New York City Corporation Counsel's Office
100 Church Street
New York, NY 10007

DETECTIVE JOHNPAUL VINCULADO

Defendant

c/o New York City Corporation Counsel's Office
100 Church Street
New York, NY 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
MALEEK SMITH,

Plaintiff,

COMPLAINT

-against-

Index No.: _____

CITY OF NEW YORK, and
NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE JOHNPAUL VINCULADO,

Defendant(s).
-----X

Plaintiff(s), by his/her attorney(s), ROTH & KHALIFE, LLP, as and for a Complaint, respectfully sets forth and alleges the following, upon information and belief:

COMMON ALLEGATIONS

1. That Plaintiff MALEEK SMITH was a resident of the County of Queens, State of New York.
2. That, at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That, at all times hereinafter mentioned, Defendant CITY OF NEW YORK was a corporation doing business in the State of New York.
4. That, at all times hereinafter mentioned, Defendant CITY OF NEW YORK was doing business in the State of New York.
5. That, at all times hereinafter mentioned, Defendant CITY OF NEW YORK maintained its principal office in the State of New York.

6. That, at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

7. That, at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT was doing business in the State of New York.

8. That, at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT maintained its principal office in the State of New York.

9. That, at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT was an agency of Defendant CITY OF NEW YORK.

10. That, at all times hereinafter mentioned, Defendant DETECTIVE JOHNPAUL VINCULADO was a resident / domiciliary of the State of New York.

11. That, at all times hereinafter mentioned, Defendant DETECTIVE JOHNPAUL VINCULADO was an employee of Defendant CITY OF NEW YORK.

12. That, at all times hereinafter mentioned, Defendant DETECTIVE JOHNPAUL VINCULADO was an employee of Defendant NEW YORK CITY POLICE DEPARTMENT.

13. That, at all times hereinafter mentioned, Defendant DETECTIVE JOHNPAUL VINCULADO was an agent of Defendant CITY OF NEW YORK.

14. That, at all times hereinafter mentioned, Defendant DETECTIVE JOHNPAUL VINCULADO was an agent of Defendant NEW YORK CITY POLICE DEPARTMENT.

15. That, at all times hereinafter mentioned, Defendant DETECTIVE JOHNPAUL VINCULADO was a police officer for Defendant CITY OF NEW YORK.

16. That, at all times hereinafter mentioned, Defendant DETECTIVE JOHNPAUL VINCULADO was a police officer for Defendant NEW YORK CITY POLICE DEPARTMENT.

17. That, at all times hereinafter mentioned, Defendant DETECTIVE JOHNPAUL VINCULADO was a detective for Defendant CITY OF NEW YORK.

18. That, at all times hereinafter mentioned, Defendant DETECTIVE JOHNPAUL VINCULADO was a detective for Defendant NEW YORK CITY POLICE DEPARTMENT.

19. That, on April 25, 2019 at approximately 10:00AM, Plaintiff was arrested.

20. That, on April 25, 2019 at approximately 10:00AM, Plaintiff was arrested based upon the investigation of Defendant CITY OF NEW YORK.

21. That, on April 25, 2019 at approximately 10:00AM, Plaintiff was arrested based upon the investigation of Defendant NEW YORK CITY POLICE DEPARTMENT.

22. That, on April 25, 2019 at approximately 10:00AM, Plaintiff was arrested based upon the investigation of Defendant DETECTIVE JOHNPAUL VINCULADO.

23. That, on April 25, 2019 at approximately 10:00AM, Plaintiff was arrested based upon the directives of Defendant CITY OF NEW YORK.

24. That, on April 25, 2019 at approximately 10:00AM, Plaintiff was arrested based upon the directives of Defendant NEW YORK CITY POLICE DEPARTMENT.

25. That, on April 25, 2019 at approximately 10:00AM, Plaintiff was arrested based upon the directives of Defendant DETECTIVE JOHNPAUL VINCULADO.

26. That, on April 25, 2019 at approximately 10:00AM, Plaintiff was arrested based upon the determinations of Defendant CITY OF NEW YORK.

27. That, on April 25, 2019 at approximately 10:00AM, Plaintiff was arrested based upon the determinations of Defendant NEW YORK CITY POLICE DEPARTMENT.

28. That, on April 25, 2019 at approximately 10:00AM, Plaintiff was arrested based upon the determinations of Defendant DETECTIVE JOHNPAUL VINCULADO.

29. That, on April 25, 2019, while still in custody, Plaintiff was brought to Central Bookings at 3:00PM.

30. That, on April 25, 2019, while still in custody, Plaintiff was brought before a Criminal Court Judge at 11:00PM.

31. That, on April 25, 2019, Plaintiff was in custody from 10:00AM until 11:00PM.

32. That, on April 25, 2019, Plaintiff was indicted and charged with Robbery in the First Degree, Robbery in the Second Degree, Attempting Robbery in the First Degree, Assault in the Second Degree, Attempted Robbery in the Second Degree, and Grand Larceny in the Fourth Degree (commencing a criminal action under criminal docket number believed to be CR-011296-19NY).

33. That, following his indictment on April 25, 2019, Plaintiff was then released on his own recognizance.

34. That, following being charged on April 25, 2019, Plaintiff was then released on his own recognizance.

35. That, following the criminal hearing on April 25, 2019, Plaintiff was then released on his own recognizance.

36. That, following the criminal proceeding on April 25, 2019, Plaintiff was then released on his own recognizance.

37. That, as a result of the arrest and indictment, a criminal action was commenced against Plaintiff (under criminal docket number believed to be CR-011296-19NY).

38. That, following April 25, 2019, Plaintiff returned to Court several times for appearances and potential hearings (under criminal docket number believed to be CR-011296-19NY); however, each time he appeared, the appearance would be adjourned.

39. That, on October 10, 2019, Plaintiff's criminal case was dismissed (under criminal docket number believed to be CR-011296-19NY).

40. That, the criminal action by Defendant CITY OF NEW YORK against Plaintiff was ultimately dismissed.

41. That, the criminal action by Defendant CITY OF NEW YORK against Plaintiff was dismissed on October 10, 2019.

42. That, the criminal action by Defendant NEW YORK CITY POLICE DEPARTMENT against Plaintiff was ultimately dismissed.

43. That, the criminal action by Defendant NEW YORK CITY POLICE DEPARTMENT against Plaintiff was dismissed on October 10, 2019.

44. That, the criminal action against Plaintiff was commenced due to the investigation conducted by Defendant DETECTIVE JOHNPAUL VINCULADO.

45. That, the criminal action commenced due to the investigation conducted by Defendant DETECTIVE JOHNPAUL VINCULADO against Plaintiff was ultimately dismissed.

46. That, the criminal action commenced due to the investigation conducted by Defendant DETECTIVE JOHNPAUL VINCULADO against Plaintiff was ultimately dismissed on October 10, 2019.

47. That, the criminal action against Plaintiff was ultimately dismissed.
48. That, the criminal action against Plaintiff was dismissed on October 10, 2019.
49. That the criminal action commenced against Plaintiff was terminated favorably to the Plaintiff.
50. That the criminal action commenced against Plaintiff was terminated in a manner not adverse to the Plaintiff.
51. That, as a result of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A FIRST CAUSE OF ACTION

52. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the above paragraphs of the within Complaint, with the same force and effect, as though each were fully set forth at length herein.
53. That Defendants' actions resulted in the commencement of a criminal judicial proceeding against Plaintiff.
54. That Defendants were responsible for said criminal judicial proceeding being instituted against Plaintiff.
55. That Defendants caused said criminal judicial proceeding to be instituted against Plaintiff.
56. That said criminal proceeding was terminated favorably to Plaintiff.

57. That said criminal proceed was terminated in a manner not adverse to Plaintiff.
58. That there was a lack of reasonable cause for the aforesaid criminal prosecution against Plaintiff.
59. That there was a lack of probable cause for the aforesaid criminal prosecution against Plaintiff.
60. That Defendants acted maliciously towards Plaintiff.
61. That, based upon the above, Defendants acted maliciously towards Plaintiff.
62. That Plaintiff suffered damages as a proximate result of the aforesaid malicious prosecution.
63. That, based upon the above, Plaintiff was caused to incur legal fees.
64. That, based upon the above, Plaintiff was caused to undergo emotional distress.
65. That, by reason of the foregoing, Plaintiff was caused irreparable harm.
66. That, based upon the above, Plaintiff was falsely arrested.
67. That, based upon the above, Plaintiff was falsely imprisoned.
68. That, based upon the above, Plaintiff was falsely held against his will.
69. That, based upon the above, Plaintiff was ordered to appear at Court on several occasions.

70. That, as a result of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A SECOND CAUSE OF ACTION – FALSE IMPRISONMENT

71. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the above paragraphs of the within Complaint, with the same force and effect, as though each were fully set forth at length herein.

72. That the Defendants' actions described above and incorporated into this cause of action resulted in an arrest of the Plaintiff against his will.

73. That the Defendants' actions described above and incorporated into this cause of action resulted in a detention of the Plaintiff against his will.

74. That the Defendants' actions described above and incorporated into this cause of action amounted to a lack of proper legal authority for such arrest and/or detention.

75. That the Defendants' actions described above and incorporated into this cause of action amounted to a lack of proper legal justification for such arrest and/or detention.

76. That, based upon the above, Plaintiff was falsely arrested.

77. That, based upon the above, Plaintiff was falsely imprisoned.

78. That, based upon the above, Plaintiff was falsely held against his will.

79. That, as a result of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A THIRD CAUSE OF ACTION - NEGLIGENCE

80. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the above paragraphs of the within Complaint, with the same force and effect, as though each were fully set forth at length herein.

81. That Defendants owed a duty to the public at large.

82. That Defendants owed a duty to this Plaintiff.

83. That Defendants owed a special duty to this Plaintiff.

84. That Defendants owed a duty to not provide false information to arresting police officers.

85. That Defendants owed a duty to this Plaintiff to not provide false information to arresting police officers.

86. That Defendants breached their duty.

87. That Defendants breached their duty to this Plaintiff.

88. That Defendants fell below a reasonable standard of care.

89. That Defendants fell below a reasonable standard of care when providing false information to police officers.

90. That Defendants fell below a reasonable standard of care in the training of its employees.

91. That Defendants fell below a reasonable standard of care in the hiring its employees.

92. That Defendants fell below a reasonable standard of care in administering its business protocols and procedures.

93. That the foregoing incident and the resulting damages to Plaintiff were caused solely by reason of the carelessness, negligence, wanton and willful disregard on the part of Defendants, and without any negligence on the part of Plaintiff contributing thereto.

94. That Defendants owed Plaintiff a duty to act reasonably under the circumstances.

95. That Defendants' failure to act reasonably resulted in harm to the Plaintiff herein.

96. That, based upon the above, Plaintiff was caused to incur significant financial loss.

97. That, based upon the above, Plaintiff was caused to incur legal fees.

98. That, based upon the above, Plaintiff was caused to undergo emotional distress.

99. That, by reason of the foregoing, Plaintiff was caused irreparable harm.

100. That, as a result of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

**AS AND FOR A FOURTH CAUSE OF ACTION – NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS**

101. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the above paragraphs of the within Complaint, with the same force and effect, as though each were fully set forth at length herein.

102. That, Defendants, by their actions, negligently inflicted emotional distress upon the Plaintiff.

103. That as a result of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A FIFTH CAUSE OF ACTION – NEGLIGENT HIRING / TRAINING

104. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the above paragraphs of the within Complaint, with the same force and effect, as though each were fully set forth at length herein.

105. That the agents, servants, employees, representatives and/or police officers of Defendant CITY OF NEW YORK and/or Defendant NEW YORK CITY POLICE DEPARTMENT were acting within the scope of their employment at the time of the incident.

106. That Defendant CITY OF NEW YORK and/or Defendant NEW YORK CITY POLICE DEPARTMENT were negligent and careless in failing to exercise reasonable care and diligence in the hiring, training and supervision of its agents, servants, employees, representatives and/or police officers who arrested, detained, falsely imprisoned, and/or maliciously prosecuted the Plaintiff.

107. That by reason of the foregoing negligence and lack of due care by the Defendant CITY OF NEW YORK and/or Defendant NEW YORK CITY POLICE DEPARTMENT, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

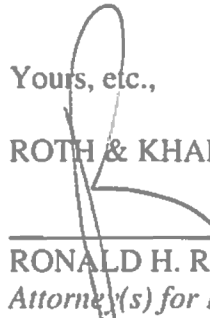
WHEREFORE, Plaintiff demands judgment against Defendant in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action, together with the costs and disbursements of this action, and with interest from the date of this accident.

Dated: New York, New York
June 24, 2020

Yours, etc.,

ROTH & KHALIFE, LLP,

By:



RONALD H. ROTH, ESQ.,
Attorney(s) for Plaintiff(s),
233 Broadway, Suite 2220
New York, New York 10279
Telephone: 212-608-3015
Facsimile: 212-608-2177

ATTORNEY'S VERIFICATION

The undersigned, an attorney duly admitted to practice law in the Courts of the State of New York, affirms the following to be true, under the penalties of perjury:

That your affirmant is the attorney-of-record for Plaintiff(s) in the within action; your affirmant has read the foregoing **SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to your affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, your affirmant believes those to be true; that the reason this verification is made by your affirmant and not by Plaintiff(s) is that Plaintiff(s) is/are currently outside of the county in which your Affirmant maintains his/her offices.

The grounds for your Affirmant's belief as to all matters not stated upon his/her knowledge are investigations which he/she has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
June 24, 2020

Yours, etc.,

ROTH & KHALIFE, LLP,

By:

RONALD H. ROTH, ESQ.,
Attorney(s) for Plaintiff(s),
233 Broadway, Suite 2220
New York, New York 10279
Telephone: 212-608-3015
Facsimile: 212-608-2177

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Defendant(s).

SUMMONS AND COMPLAINT

ROTH & KHALIFE, LLP
Attorney(s) for Plaintiff(s)
233 Broadway, Suite 2220
New York, New York 10279
(212) 608-3015